

## **Annexure: Disqualifications**

### **Section 55 of the Insolvency Act (Persons disqualified from being trustees):**

Any of the following persons shall be disqualified from being elected or appointed as a trustee:

- (a) any insolvent;
- (b)...
- (c) a minor or any other person under any legal disability;
- (d) any person who does not reside in the Republic;
- (e)...
- (f) a former trustee disqualified under section 72;
- (g) any person declared under section 59 to be incapacitated for election as trustee, while any such incapacity lasts, or any person removed by the court, on account of misconduct, from an office of trust;
- (h) a corporate body;
- (i) any person who has at any time been convicted (whether in the Republic or elsewhere) of theft, fraud, forgery or uttering a forged document, or perjury and has been sentenced to imprisonment without the option of a fine, or to a fine exceeding R2 000;
- (j) any person who was, at any time, a party to an agreement or arrangement with any debtor or creditor whereby he or she undertook that he or she would, when performing the functions of a trustee or assignee, grantor endeavour to grant to, or obtain or endeavour to obtain for any debtor or creditor any benefit not provided for by law;
- (k) any person who has by means of any misrepresentation or any reward or offer of any reward, whether directly or indirectly, induced or attempted to induce any person to vote for him or her as trustee or to effect or assist in effecting his or her election as trustee of any insolvent estate;
- (l)...

### **Section 372 of Companies Act, 1973: (Persons disqualified from appointment as liquidator):**

No person shall be qualified for nomination or appointment as the liquidator of a company, if he or she is

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- (a) an insolvent;
- (b) a minor or any other person under any legal disability;
- (c) a person declared under section 373 to be incapable of being appointed as a liquidator, while he or she remains so incapable;
- (d) a person removed from an office of trust by the court on account of misconduct or a person who is the subject of any order under this Act disqualifying him or her from being a director;
- (e) a corporate body;
- (f) any person who has at any time been convicted (whether in the Republic or elsewhere) of theft, fraud, forgery or uttering a forged document or perjury and has been sentenced therefor to imprisonment without the option of a fine or to a fine exceeding twenty rand;
- (g) any person who has by means of any misrepresentation or any reward, whether directly or indirectly induced or attempted to induce any person to vote for him or her in the nomination of a liquidator or to effect or assist in effecting his or her nomination or appointment as liquidator of any company;
- ...
- (j) any agent authorized specially or under a general power of attorney to vote for or on behalf of a creditor at a meeting of creditors of the company concerned and acting or purporting to act under such special authority or general power of attorney.